

Court No. - 37

Case :- WRIT - C No. - 16830 of 2012

Petitioner :- Rishal Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Swetashwa Agarwal, J.H. Khan

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

We have heard Shri J.H. Khan, learned counsel appearing for the petitioner. Learned Standing Counsel appears for the State respondents. Shri Pankaj Kumar Shukla appears for the electricity department.

The petitioner is aggrieved by the excess billing. It is submitted that he had deposited some amount in the year 2010, which has not been adjusted, and that the disconnection notice was given on 5.2.2011 raising a demand of Rs. 50, 009/-. He also received a bill of Rs. 52, 254/- in February, 2011.

It is submitted that the petitioner's electricity connection has been disconnected without correcting the bills.

There is no averment nor any representation has been annexed to the writ petition to show that the petitioner has approached the electricity department for corrections of the bills.

There is a detailed procedure provided for corrections of the bills in the U.P. Electricity Supply Code, 2005.

We do not propose to interfere in the matter, until the petitioner approaches the electricity department for corrections of the bills.

The writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 5.4.2012

RKP